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X Is Suing California Over Social Media Content Moderation Law

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The measure requires companies to disclose details about how they handle hate speech, extremism and misinformation.

X, the social media company previously known as Twitter, is suing the state of California over a law that requires companies to disclose details about their content moderation practices. The law, known as AB 587, requires social media companies to publish information about their handling of hate speech, extremism, misinformation and other issues, as well as details about internal moderation processes.

Lawyers for X argue that the law is unconstitutional and will lead to censorship. It 'has both the purpose and likely effect of pressuring companies such as X Corp. to remove, demonetize, or deprioritize constitutionally-protected speech,' the company wrote in the lawsuit. 'The true intent of AB 587 is to pressure social media platforms to 'eliminate' certain constitutionally-protected content viewed by the State as problematic.'

X is not alone in its opposition to the law. Though the measure was backed by some activists, a number of industry groups took issue with AB 587. Netchoice, a trade group which represents Meta, Google, TikTok and other tech companies, argued last year that AB 587 would help bad actors evade companies' security measures, and make it harder for them to enforce their rules.

At the same time, AB 587's backers have said it's necessary to increase the transparency of major platforms. 'If @X has nothing to hide, then they should have no objection to this bill,' Assemblyman Jesse Gabriel, who wrote AB 587, said in response to X's lawsuit.

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